

SENATE No. 510

The Commonwealth of Massachusetts

PRESENTED BY:

Peter J. Durant

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to safe and secure elections.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>1/27/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/28/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/31/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/27/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>3/19/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>7/21/2025</i>

SENATE No. 510

By Mr. Durant, a petition (accompanied by bill, Senate, No. 510) of Peter J. Durant, John R. Gaskey, Joseph D. McKenna, Colleen M. Garry and others for legislation to provide a photo identification card to be used for voting purposes to ensure safe and secure elections. Election Laws.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to safe and secure elections.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 51 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by adding the following section:-

3 Section 67. The state secretary shall issue, upon request and at no cost to the voter, a
4 photo identification card to be used for voting purposes only. Upon determination that a person
5 meets the qualifications of a voter described in section 1, the secretary photograph the voter, and
6 said photograph shall appear on the voting identification card and be a straightforward looking
7 view of the voter without eyeglasses. The identification card shall be clearly marked “FOR
8 VOTING PURPOSES ONLY.”

9 SECTION 2. Chapter 54 of the General Laws, as so appearing, is hereby amended by
10 striking out section 76 as appearing in the 2022 Official Edition and inserting in place thereof the
11 following section:-

12 SECTION 76. (a) A person desiring to vote shall, before being admitted to the enclosed
13 space within the guardrail, announce his or her name and address to one of the ballot clerks who
14 shall, if the name is found on the checklist by the ballot clerk, repeat the name and address. If the
15 address announced by voter is different from what appears on the checklist, but is in the same
16 town or ward, the ballot clerk shall record the change of address in red on the paper checklist and
17 the supervisors of the checklist shall cause the voter registration database to reflect the change.

18 SECTION 3. Chapter 54 of the General Laws, as so appearing, is hereby amended by
19 striking out section 76B as appearing in the 2022 Official Edition and inserting in place thereof
20 the following section:-

21 Section 76B. (a) The voter who desires to vote shall be asked to present proof of his or
22 her identity meeting the requirements of subsection (b). If the voter presents such proof of
23 identity to the ballot clerk, the ballot clerk shall give the voter one of each ballot to be voted on
24 in that election. The ballot clerk shall also mark the checklist using a ruler or other straight edge
25 to ensure accuracy of the mark in order to show that the voter obtained his or her ballot. If the
26 photo identification is an out-of-state driver's license or nondriver's identification card, the ballot
27 clerk shall record the state of issuance on the checklist in accordance with uniform procedures
28 developed by the secretary of state in a color designated for such entries and the supervisors of
29 the checklist or designee shall record the state of issuance of the voter's driver's license or
30 identification card in the statewide centralized voter registration database within 30 days of the
31 election. The voter shall then be allowed to enter the space enclosed by the guardrail to mark and
32 cast his or her ballot.

(b) A valid photo identification shall show the name of the individual to whom the identification was issued, and the name shall substantially conform to the name in the individual's voter registration record; it also shall show a photograph of the individual to whom the identification was issued. The photo identification shall also have an expiration date that has not been exceeded by a period of more than 5 years, except that a voter 65 years of age or older may use an otherwise qualified form of identification without regard to expiration date, and except that student identification cards shall comply with the date requirements in subparagraph (5).

The following forms of identification bearing a photograph of the voter shall satisfy the identification requirements of subsection (a):

- (1) A driver's license issued under section 9 of Chapter 159A of the General Laws;
- (2) An identification card issued under section 8E of Chapter 90 of the General Laws or a nondriver's identification card issued by the motor vehicles division, department, agency, or office of any other state;
- (3) A United States armed services identification card;
- (4) A United States passport or card;
- (5) A voter identification card issued by the secretary of state, under Section 67 of Chapter 51 of the General Laws; or
- (6) A challenged voter affidavit in accordance with subsection (c).

52 The secretary of state shall provide training for supervisors of the checklist on how the
53 nonpublic data in the statewide centralized voter registration database may be used to satisfy
54 voter identification requirements.

55 (c) The secretary of state shall develop and make available an informational pamphlet
56 explaining the procedure for obtaining a picture identification card for voter identification
57 purposes only.

58 (d) An individual who does not or cannot provide a valid photo identification document
59 they shall be able to cast a provisional ballot pursuant to section 76C of Chapter 54.